

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #16	CCRB Case #: 201706816	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 08/17/2017 5:20 PM	Location of Incident: 34-09 126th Street; Northern Boulevard and 127th Place; Citifield stationhouse		18 Mo. SOL 2/17/2019		Precinct: 110
Date/Time CV Reported Thu, 08/17/2017 9:54 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 08/17/2017 9:54 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			PBQ/N
2. An officer			PBQ/N
3. POM David Bennett	20369	936195	PBQ/N
4. POM Jeffrey Mui	28555	930789	PBQ/N
5. POM Anthony Sica	01073	943815	PBQ/N
6. POF Brittany Waldon	23482	953547	PBQ/N

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Norris Cordova	3074	933708	PBQ/N
2. LT Kenneth McBride	00000	919373	PBQ/N

Officer(s)	Allegation	Investigator Recommendation
A . POM Jeffrey Mui	Discourtesy: At 34-09 126th Street, Police Officer Jeffrey Mui spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Jeffrey Mui	Discourtesy: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Jeffrey Mui	Off. Language: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui made remarks to § 87(2)(b) based upon his gender.	C . Unsubstantiated
D . POF Brittany Waldon	Discourtesy: At 34-09 126th Street, in Queens, Police Officer Brittany Waldon spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Jeffrey Mui	Abuse: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . POM Jeffrey Mui	Abuse: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui threatened § 87(2)(b) with the use of force.	F . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
G . POM Jeffrey Mui	Abuse: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui threatened § 87(2)(b) with the use of force.	G . Unsubstantiated
H . POM Jeffrey Mui	Abuse: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui threatened § 87(2)(b) with the use of force.	H . Unsubstantiated
I . POM Jeffrey Mui	Discourtesy: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui spoke discourteously to § 87(2)(b)	I . Unsubstantiated
J . POM David Bennett	Discourtesy: On Northern Boulevard and 127th Place, in Queens, Police Officer David Bennett spoke discourteously to § 87(2)(b)	J . Unsubstantiated
K . An officer	Discourtesy: On Northern Boulevard and 127th Place, in Queens, an officer spoke discourteously to § 87(2)(b)	K . Officer(s) Unidentified
L . An officer	Discourtesy: On Northern Boulevard and 127th Place, in Queens, an officer spoke discourteously to § 87(2)(b)	L . Officer(s) Unidentified
M . An officer	Discourtesy: On Northern Boulevard and 127th Place, in Queens, an officer spoke discourteously to § 87(2)(b)	M . Officer(s) Unidentified
N . POM David Bennett	Abuse: On Northern Boulevard and 127th Place, in Queens, Police Officer David Bennett searched the vehicle in which § 87(2)(b) was an occupant.	N . Exonerated
O . POM Anthony Sica	Discourtesy: At the Citifield stationhouse, Police Officer Anthony Sica spoke discourteously to § 87(2)(b)	O . Unsubstantiated
P . Officers	Abuse: On Northern Boulevard and 127th Place, in Queens, officers searched the vehicle in which § 87(2)(b) was an occupant.	P . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

On August 17, 2017, § 87(2)(b) filed this complaint online via the CCRB's website.

On August 17, 2017, at approximately 5:20 p.m., § 87(2)(b) and several of his friends were by their vehicle in front of "Pamir's Auto Shop" located at 34-09 126th Street, in Queens, when PO Jeffrey Mui and PO Anthony Sica of Patrol Borough Queens North-Citifield Detail approached them. PO Mui allegedly used various discourtesies while speaking with § 87(2)(b) and § 87(2)(b) (**Allegation A: Discourtesy, unsubstantiated; Allegation B: Discourtesy, unsubstantiated**). PO Mui allegedly called § 87(2)(b) a "bitch" (**Allegation C: Offensive Language, unsubstantiated**). PO Brittany Waldon of Patrol Borough Queens North-Citifield Detail arrived on the scene and told § 87(2)(b) to "shut the fuck up" and, "Buddy calm the fuck down. Stop being a dumbass and just listen" (**Allegation D: Discourtesy, unsubstantiated**). PO Mui also threatened to fight § 87(2)(b) and § 87(2)(b) (**Allegation E: Abuse of Authority, unsubstantiated; Allegation F: Abuse of Authority, unsubstantiated; Allegation G: Abuse of Authority, unsubstantiated**). PO Mui allegedly told § 87(2)(b) "I will slam you to the ground," and spoke discourteously to him (**Allegation H: Abuse of Authority, § 87(2)(g) Allegation I: Discourtesy, unsubstantiated**). At the conclusion of this incident, § 87(2)(b) was issued a VTL summons.

Immediately after the incident, § 87(2)(b) met up with the same individuals a few blocks away on Northern Boulevard and 127th Place, in Queens. All three of the civilians' vehicles were stopped by a bus stop. As § 87(2)(b) was speaking with § 87(2)(b) outside of their vehicles, PO David Bennett, Det. Norris Cordova, and an unidentified officer of Patrol Borough Queens North-Citifield Detail approached them and § 87(2)(b) heard PO Bennett say, "Get back in your fucking cars" (**Allegation J: Discourtesy, unsubstantiated**). An unidentified officer allegedly told § 87(2)(b) and § 87(2)(b) "Get back in the car pussy" (**Allegation K: Discourtesy, officer unidentified; Allegation L: Discourtesy, officer unidentified**). An unidentified officer also told § 87(2)(b) "Don't say a fucking word or this will get ugly" (**Allegation M: Discourtesy, officer unidentified**). At the location, § 87(2)(b) and § 87(2)(b) were placed under arrest and charged with disorderly conduct. § 87(2)(b) and § 87(2)(b) were then transported to the Citifield command stationhouse. While on the scene, PO Bennett entered and moved § 87(2)(b) vehicle into a parking space (**Allegation N: Abuse of Authority, exonerated**).

Inside the holding cells at the Citifield stationhouse, PO Sica allegedly told § 87(2)(b) "Oh you're crying now? Stop being a pussy. I thought you guys were acting hard outside" (**Allegation O: Discourtesy, unsubstantiated**). § 87(2)(b) and § 87(2)(b) were eventually released from the stationhouse with a § 87(2)(b) summons. After § 87(2)(b) was released, he was informed by an officer that his vehicle had been moved and that officers searched it (**Allegation P**).

§ 87(2)(g), § 87(4-b)

Video footage was obtained from 34-09 126th Street, in Queens.

Findings and Recommendations

Allegation (A) Discourtesy: At 34-09 126th Street, Police Officer Jeffrey Mui spoke discourteously to § 87(2)(b)

Allegation (B) At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui spoke discourteously to § 87(2)(b)

Allegation (C) At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui made remarks to § 87(2)(b) based upon his gender.

Allegation (E) Abuse of Authority: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui threatened § 87(2)(b) with the use of force.

Allegation (F) Abuse of Authority: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui threatened § 87(2)(b) with the use of force.

Allegation (G) Abuse of Authority: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui threatened § 87(2)(b) with the use of force.

Allegation (H) Abuse of Authority: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui threatened § 87(2)(b) with the use of force.

Allegation (I) Discourtesy: At 34-09 126th Street, in Queens, Police Officer Jeffrey Mui spoke discourteously to § 87(2)(b)



2018-05-18_9-48-38.mp4

A Snagit clip of the surveillance video footage obtained from 34-09 126th Street, in Queens, depicts several civilians standing around two vehicles in front of Pamir's Auto Shop. A police van drives past and subsequently comes around towards the two vehicles. Two officers, identified via the investigation as PO Mui and PO Sica, exited the vehicle and spoke with the civilians. The video footage does not contain audio.

In his CCRB testimony, § 87(2)(b) stated that when the marked police vehicle drove towards his vehicle and his friends' vehicle, PO Mui exited and repeatedly asked, "Who called me a pussy" (Board Review 05). PO Mui told § 87(2)(b) that someone called him a "pussy." § 87(2)(b) told PO Mui that nobody said it. § 87(2)(b) told PO Mui to leave him alone and § 87(2)(b) stated, "This is bullshit and you can't stop me for something so stupid like this." PO Mui repeatedly stated, "Be a fucking man," and asked, "Who called me a pussy? Say it to my fucking face." PO Mui also said, "Stop being a bitch, say it to my face." In response, § 87(2)(b) told PO Mui, "Leave me the fuck alone." At some point in the midst of the back-and-forth exchange, § 87(2)(b) attempted to reverse his vehicle to leave the scene because he wanted to get out of the situation. However, PO Mui did not let him leave by saying, "If you leave you are going to be in deeper shit. Don't fucking leave." Prior to § 87(2)(b) being issued the summons, PO Mui told § 87(2)(b) "You think you're a tough guy? Come out the car and let's fight then." § 87(2)(g)

§ 87(2)(b) In § 87(2)(b) online complaint, § 87(2)(b) alleged that PO Mui also threatened § 87(2)(b) with the use of force (Board Review 01). During his CCRB statement, § 87(2)(b) clarified that he did not hear this during the incident, but he was informed by § 87(2)(b) that PO Mui told § 87(2)(b) "Get the fuck off the road," and, "Get back before I slam you on the floor and handcuff you."

In his CCRB testimony, § 87(2)(b) stated that when PO Mui exited the vehicle, PO Mui asked § 87(2)(b) “What the fuck did you just say” (Board Review 07). § 87(2)(b) did not hear his friends using any profanities. § 87(2)(b) heard PO Mui tell § 87(2)(b) “Get out of the car and fight me,” but § 87(2)(b) did not hear what § 87(2)(b) said in response. § 87(2)(b) stated that PO Mui allowed him to leave. § 87(2)(b) stated that he did not hear PO Mui say, “If you leave, you are going to be in deeper shit. Don’t fucking leave.” § 87(2)(b) stated that he would not have left had he heard PO Mui saying this. § 87(2)(b) denied hearing PO Mui using any additional profanities towards him. § 87(2)(b) also denied hearing PO Mui ask, “Who called me a pussy,” or saying the word “pussy” or “bitch.” § 87(2)(b) stated that he also heard PO Mui tell § 87(2)(b) “I will slam you to the ground” twice.

Neither § 87(2)(b) nor § 87(2)(b) provided a sworn statement. In § 87(2)(b)’s phone statement, § 87(2)(b) stated that he heard § 87(2)(b) and § 87(2)(b) say, “You’re pussy, You’re pussy,” when a police vehicle passed by the location (Board Review 02). Additionally, in § 87(2)(b)’s phone statement, § 87(2)(b) also acknowledged that someone called the officers a “pussy” as the officers drove past (Board Review 03). § 87(2)(b) stated that he heard PO Mui tell § 87(2)(b) “You’re pussy, pussy come outside and fight me one on one.” § 87(2)(b) stated that PO Mui told him, § 87(2)(b) and § 87(2)(b) to fight him. § 87(2)(b) stated that PO Mui told him, “Get the fuck out of here,” and “Oh, I will slam you to the ground.”

§ 87(2)(b) § 87(2)(b) provided a sworn statement to the CCRB (Board Review 11). § 87(2)(b) stated that he was alerted by his employees that there was a police interaction outside of the shop. § 87(2)(b) went out and observed civilians speaking loudly to officers outside his shop. § 87(2)(b) stated that one of the civilians was cursing a lot and saying the word “fuck” a lot. § 87(2)(b) stated that an officer, identified via the investigation as PO Mui, was “tough” when speaking to the civilians. When asked what § 87(2)(b) meant by PO Mui being “tough,” § 87(2)(b) stated that PO Mui was showing his authority, but he did not recall anything PO Mui was saying specifically. Additionally, § 87(2)(b) could not describe how PO Mui was acting tough or further describe his behavior. § 87(2)(b) denied hearing PO Mui say the word “pussy” or hear PO Mui cursing. When asked if he heard PO Mui say, “You messed with the wrong fucking cops today,” § 87(2)(b) stated that there was a similar argument, but he did not hear PO Mui say the aforementioned statement. § 87(2)(b) stated that he did not hear officers use any bad language towards any of the individuals.

Aside from the civilians mentioned above, the investigation was unable to obtain additional statements because contact information was not provided for any additional civilians.

In their CCRB testimony, PO Mui and PO Sica both stated that they observed two vehicles illegally parked on 126th Street and they approached the vehicles to tell them to leave. PO Mui and PO Sica stated they spoke with the civilians and eventually one of the vehicles left, but the other vehicle remained on the scene. PO Mui stated that the individuals’ tones were normal and that they were just asking why they had to move (Board Review 12). PO Mui did not recall if there were any difficulties speaking with any of the individual. PO Sica stated that the driver and the passenger of the vehicle who remained became belligerent, started screaming, and cursed at PO Sica (Board Review 10). PO Sica stated that the two civilians were saying, “Fuck you pussy,”

and “I will kick your ass.” PO Sica stated that the two civilians were also using racist terms against Asians such as “Fuck you chink,” “You’re a fucking Korean,” “Go back to Japan,” towards PO Mui. PO Sica denied saying anything in response to the two civilians’ comments and he did not hear PO Mui saying anything in response. PO Sica denied hearing PO Mui say the word “pussy” or “bitch.” Additionally, he did not hear PO Mui say, “Be a fucking man.” PO Sica also denied hearing PO Mui threaten to fight any civilians or threaten any civilians with the use of force. PO Sica denied hearing PO Mui use any profanities or offensive language towards any of the civilians.

PO Mui denied hearing any of the individuals during the interaction say “pussy,” or using any profanities. PO Mui denied asking any of the individuals, “What the fuck did you just say,” or saying, “You messed with the wrong fucking cops today.” PO Mui also denied asking, “Who called me a pussy?” PO Mui denied saying, “Be a fucking man,” “Say it to my fucking face,” or “Stop being a bitch.” Additionally, PO Mui denied saying “bitch.” PO Mui denied telling any of the individuals, “If you leave you’re going to be in deeper shit. Don’t fucking leave.” PO Mui denied saying, “You’re a tough guy, come out the car and let’s fight,” or telling any civilians, “I’ll slam you to the ground,” “Get back before I slam you on the floor and handcuff you,” or “Get the fuck off the road.” PO Mui denied threatening anyone with the use of force. PO Mui denied using any offensive language towards any of the individuals during the incident.

In her CCRB statement, PO Waldon stated that she arrived on the scene after seeing PO Mui and PO Sica engaged in the vehicle stop (Board Review 13). PO Waldon denied hearing PO Mui using any profanities or offensive language during the incident and she denied hearing PO Mui threatening to fight any civilians or hearing PO Mui telling a civilian to fight. Moreover, PO Waldon did not hear any officers arguing with any of the occupants and stated that she did not recall any difficulties with the officers speaking with any of the occupants.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegations A, B, C, E, F, G, H, and I** be closed as **Unsubstantiated**.

Allegation (D) Discourtesy: At 34-09 126th Street, in Queens, Police Officer Brittany Waldon spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that at some point during the incident, a female officer, identified via the investigation as PO Waldon, arrived on the scene. While § 87(2)(b) was speaking to PO Waldon, PO Waldon told § 87(2)(b) “Shut the fuck up,” and she also stated, “Buddy, calm the fuck down. Stop being a dumbass and just listen” (Board Review 05).

§ 87(2)(b) and § 87(2)(b) did not allege that a female officer used profanities during the incident (Board Review 02, 03, and 07). § 87(2)(b) stated that a female officer, identified

via the investigation as PO Waldon, tried to convince the individuals to be quiet, but the individuals did not comply (Board Review 11). § 87(2)(b) did not recall what PO Waldon said, but he denied hearing PO Waldon say, “Buddy calm the fuck down,” “Stop being a dumbass and listen,” or “Shut the fuck up.”

PO Waldon denied telling any of the occupants, “Calm the fuck down, stop being a dumbass, and just listen” (Board Review 13). PO Waldon also denied telling anyone to “shut the fuck up.” PO Waldon denied speaking with any of the occupants. PO Mui and PO Sica both stated that they did not recall if a female officer was ever on the scene (Board Review 10 and 12). Moreover, PO Sica denied hearing any female officer use any profanities during the incident.

§ 87(2)(g)

Therefore it is recommended that **Allegation D** be closed as **Unsubstantiated**.

Allegation (J) Discourtesy: On Northern Boulevard and 127th Place, in Queens, Police Officer David Bennett spoke discourteously to § 87(2)(b)

Allegation (K) Discourtesy: On Northern Boulevard and 127th Place, in Queens, an officer spoke discourteously to § 87(2)(b)

Allegation (L) Discourtesy: On Northern Boulevard and 127th Place, in Queens, an officer spoke discourteously to § 87(2)(b)

After § 87(2)(b) was issued a VTL summons, § 87(2)(b) and § 87(2)(b) met up with § 87(2)(b) and § 87(2)(b) at a bus stop on Northern Boulevard and 127th Place. At the location, § 87(2)(b)'s vehicle was behind § 87(2)(b)'s vehicle and § 87(2)(b) stopped his vehicle behind § 87(2)(b)'s vehicle.

In his CCRB statement, § 87(2)(b) stated that PO Bennett, Det. Cordova, and an unidentified officer exited an unmarked vehicle and told them “Don’t go” (Board Review 05). During § 87(2)(b)'s interview, § 87(2)(b) stated that an officer, identified via the investigation as PO Bennett given that his physical attributes generally matched § 87(2)(b)'s description of the subject officer, said, “Get back in your fucking cars” (Board Review 07). Additionally, as § 87(2)(b) was walking back to his vehicle, he heard an officer tell § 87(2)(b) and § 87(2)(b) “Get back in the car pussy,” but he did not see which officer said this. § 87(2)(b) and § 87(2)(b) were placed under arrest and charged with disorderly conduct while the other civilians were free to leave.

As stated above, § 87(2)(b) and § 87(2)(b) did not provide a sworn statement. In their phone statements, § 87(2)(b) and § 87(2)(b) did not allege that the officer used any profanities during this incident (Board Review 02 and 03).

In their CCRB testimony, PO Bennett and Det. Cordova both observed either one or two vehicles parked at a bus stop and they observed one vehicle double parked in the lane next to the bus stop. PO Bennett stated that he saw yelling in the street in between the vehicles (Board Review 08). PO Bennett and Det. Cordova exited their vehicle. Det. Cordova stated that instructed the civilians to move twice. PO Bennett stated that he believes that he [PO Bennett] told the individuals to get back in their vehicles, but he did not recall what he specifically said. PO Bennett did not recall

saying, “Get back in your fucking cars” or calling anyone “pussies.” PO Bennett did not recall using any profanities towards any of the individuals and did not recall hearing any officers using any profanities. Det. Cordova also denied telling any civilians, “Get back in your fucking cars” (Board Review 09). Det. Cordova denied using any profanities towards the civilians and did not hear PO Bennett doing so.

During the interview, when asked if § 87(2)(b) and § 87(2)(b) were doing or saying anything when they refused to leave, PO Bennett stated, “they were being jerks” and giving him a hard time about everything he asked them to do (Board Review 08). PO Bennett stated that they were placed in handcuffs and transported to the stationhouse because they did not have any summonses on them at the time and they did not have the devices to run warrant checks.

§ 87(2)(g)
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§ 87(2)(g) Therefore, it is recommended that **Allegations J and K** be closed as **Unsubstantiated**.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) Therefore, it is recommended that **Allegation L** be closed as **Unsubstantiated**.

Allegation (M) Discourtesy: On Northern Boulevard and 127th Place, in Queens, an officer spoke discourteously to § 87(2)(b)

In his online complaint, § 87(2)(b) alleged that the officer who placed him in handcuffs told him, “Don’t say a fucking word or this will get ugly” (Board Review 01). During his CCRB interview, § 87(2)(b) recalled the subject officer as a Hispanic male officer in plainclothes, who is 5’7”-5’8” tall, with short black hair (Board Review 05). Aside from this officer and PO Bennett, § 87(2)(b) did not provide a description of the third officer who was present during this incident.

As stated above, § 87(2)(b) and § 87(2)(b) did not provide a sworn statement. In their phone statements, § 87(2)(b) and § 87(2)(b) did not allege that the officer used any profanities during this incident (Board Review 02 and 03). Additionally, § 87(2)(b) stated that he was not present when the officers arrested § 87(2)(b) and § 87(2)(b) and only found out about their arrests after the incident (Board review 07).

Neither PO Bennett nor Det. Cordova recalled if they were with another officer during this incident. PO Bennett and Det. Cordova both denied saying, “Don’t say a fucking word” or hear any officers say this. PO Bennett did not recall using any profanities towards any of the individuals and did not recall hearing any officers using any profanities (Board Review 08). Det. Cordova denied using any profanities and did not hear PO Bennett using any profanities (Board Review 09). Det. Cordova stated that he recalled Lt. McBride responding to Northern Boulevard and 127th Place. In his CCRB statement, Lt. McBride did not have an independent recollection of

this incident and did not recognize § 87(2)(b) or § 87(2)(b) from their photos taken at the CCRB (Board Review 14).

The Citifield Unit Roll Call only lists the names of the officers who were working and does not include any information regarding their assignments or partners (Board Review 25). Additionally, the Citifield Unit does not maintain a Vehicle Utilization log for the vehicle Det. Cordova and PO Bennett was driving (Board Review 32).

§ 87(2)(g)

it is recommended that **Allegation M** be closed as **Officer Unidentified**.

Allegation (N) Discourtesy: On Northern Boulevard and 127th Place, in Queens, Police Officer David Bennett searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (P) Discourtesy: On Northern Boulevard and 127th Place, in Queens, officers searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that when he was arrested he gave his keys to the officers. When he was released from the stationhouse, § 87(2)(b) stated that he was informed by an officer, who he did not recall, that his car was moved to a legal parking space and that officers had searched it (Board Review 05). § 87(2)(b) stated that he knew that officers searched the interior and trunk of his vehicle because everything was taken out of the glove compartment and center console and everything appeared to be thrown around inside his trunk.

PO Bennett stated that he moved § 87(2)(b) vehicle for the sole purpose of parking it legally a block away to prevent it from being towed (Board Review 08). PO Bennett stated that he was the only officer who entered § 87(2)(b) vehicle. PO Bennett did not suspect there to be any contraband or evidence of a crime inside the vehicle. PO Bennett affirmed that he locked the vehicle's doors after moving the vehicle. PO Bennett denied searching the vehicle, opening any compartments, or opening the trunk. PO Bennett stated that none of the items inside the vehicle were brought back or vouchered at the command. Det. Cordova acknowledged seeing PO Bennett move § 87(2)(b) vehicle, but he denied seeing PO Bennett searching this vehicle, opening any compartments, or opening the trunk of the vehicle (Board Review 09). Det. Cordova denied entering the vehicle or searching the vehicle.

According to Patrol Guide Procedure 208-03 (4), officers should safeguard a vehicle that is not required as evidence (Board Review 16).

Officers may not search a vehicle incident to arrest without a warrant unless an arrestee may access a weapon or destructible evidence, or when an officer reasonably believes evidence of the offense of arrest might be found in the vehicle, Arizona v. Gant, 556 U.S. 332 (2009) (Board Review 17).

§ 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegation N** be closed as **Exonerated**.

§ 87(2)(g)
Therefore, it is recommended that **Allegation P** be closed as **Officers Unidentified**.

Allegation (O) Discourtesy: At the Citifield stationhouse, Police Officer Anthony Sica spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that while he and § 87(2)(b) were placed inside a cell in the stationhouse, § 87(2)(b) began crying and PO Sica called § 87(2)(b) a “pussy” and said, “Oh you’re crying now? Stop being a pussy. I thought you guys were acting hard outside” (Board Review 05). § 87(2)(b) stated that he was alone with § 87(2)(b) inside the holding cell at the time.

As noted above, § 87(2)(b) did not provide a sworn statement. In his phone statement, § 87(2)(b) did not allege any officers speaking discourteously towards him in the stationhouse (Board Review 03).

PO Sica denied seeing any of the civilians during this incident at the stationhouse and he denied having any additional interactions with the civilians after they left the scene (Board Review 10). PO Sica denied telling any of the civilians at the stationhouse, “Stop being a pussy.”

PO Mui denied returning to the command at any point between this incident and the time when he ended his tour (Board Review 12). Additionally, PO Mui stated that PO Sica did not return to the stationhouse at any point without him during their tour. PO Mui denied seeing any of the individuals during the incident when he returned to the stationhouse.

§ 87(2)(g) Therefore it is recommended that **Allegation O** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)
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§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
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- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Mui has been a member-of-service for 15 years and this is the first CCRB complaint to which he has been a subject.
- PO Sica has been a member-of-service for 11 years and has been a subject in three CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- § 87(2)(g), § 87(4-b)
- PO Bennett has been a member-of-service for 13 years and this is the first CCRB complaint to which he has been a subject.
- PO Waldon has been a member-of-service for five years and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of November 21, 2017, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 31).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date